

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS

PLAINTIFF

vs. Case No. _____

Alexandrina-Katharine Montgomery-Vandenberg-Oyalaran y Fitzwilliam III

DEFENDANT

(First, Middle and Last Name)

PETITION TO SEAL A MISDEMEANOR CONVICTION
FOR DRIVING OR BOATING WHILE INTOXICATED

Comes the Defendant and for his/her Petition to Seal the record states:

1. The Defendant was arrested on the _____ day of _____, _____, and charged with the offense(s) of Driving or Boating While Intoxicated in violation of Ark. Code Ann. §5-65-103.
2. The Defendant either pled guilty or was found guilty of the offense(s) listed above.
3. The Defendant has completed his or her sentence for this offense.
4. Defendant has paid all court costs unless payment has been excused by the Court.
5. Defendant has paid all Court ordered Restitution, if any.

6. Defendant has paid all driver's license suspension reinstatement fees and completed all driver's license reinstatement requirements if Defendant's driver's license was suspended as a result of this plea or conviction.
7. Pursuant to Ark. Code Ann. §5-65-111(b)(1) and/or (c)(1), it has been more than ten (10) years since Defendant's first conviction for Driving or Boating While Intoxicated.
8. ☐ Defendant has no pending felony charges in any state or federal court, or ☐ Defendant has one or more pending felony charges in state or federal court and the status of those charges is/are as follows:
- _____
- _____
9. Defendant ☐ **IS** or ☐ **IS NOT** required to register as a sex offender under the Sex Offender Registration Act of 1997 (Ark. Code Ann. §12-12-901, et seq)
10. Defendant requests the Court enter a finding that he or she has been rehabilitated.
11. As evidenced by my signature below, the above information is true and correct to the best of Defendant's knowledge.

WHEREFORE, the Defendant, _____, prays this Court enter an order Sealing the above referenced misdemeanor conviction.

Defendant's Signature

Date

VERIFICATION

STATE OF ARKANSAS

COUNTY OF _____

Comes the Defendant/Petitioner, _____, under oath and states that the foregoing Petition is true and correct to the best of my knowledge and belief.

Petitioner

Subscribed and sworn to before me on this _____,
day of

_____, 20_____.

(Seal)

Notary Public

My Commission expires: _____

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____

Arrest Tracking Number _____

Sex _____

SID No. _____

DOB 1991-04-17

FBI No. (If known) _____

Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date